

**SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK**

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LISA KELLY,

Plaintiff,

- against -

THE CITY OF NEW YORK; NYPD CAPTAIN ABRAHAM BADILLO; NYPD SERGEANT ELVIN GASHI; NYPD SERGEANT SASHA H. ROSEN; NYPD OFFICER EDWARD E. GASTON; NYPD INSPECTOR ELIAS A. NIKAS; NYPD SERGEANT DAVID A. LAMARRE; NYPD OFFICER STEVEN OQUENDO; and NYPD MEMBER DOES 1-13,

Defendant(s)

----- X

**SUMMONS**

**Index No.**

**To the above-named Defendants:**

THE CITY OF NEW YORK; NYPD CAPTAIN ABRAHAM BADILLO; NYPD SERGEANT ELVIN GASHI; NYPD SERGEANT SASHA H. ROSEN; NYPD OFFICER EDWARD E. GASTON; NYPD INSPECTOR ELIAS A. NIKAS; NYPD SERGEANT DAVID A. LAMARRE; NYPD OFFICER STEVEN OQUENDO; and NYPD MEMBER DOES 1-13,

**You are hereby summoned** to answer the Complaint in this action, and to serve a copy of your Answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: Queens, New York  
August 5, 2024

**COHEN&GREEN P.L.L.C.**

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To:

THE CITY OF NEW YORK  
c/o Hon. Muriel Goode-Trufant  
The New York City Law Department

100 Church Street  
New York, New York 10007

NYPD Member Does #1-13

NYPD CAPTAIN ABRAHAM BADILLO (TAX #936162)  
1 Police Plaza  
New York, NY 10038

NYPD SERGEANT ELVIN GASHI (BADGE #2407)  
1 Police Plaza  
New York, NY 10038

NYPD SERGEANT SASHA H. ROSEN (BADGE #5061)  
1 Police Plaza  
New York, NY 10038

NYPD OFFICER STEVEN OQUENDO (BADGE #25854)  
1 Police Plaza  
New York, NY 10038

NYPD SERGEANT DAVID A. LAMARRE (BADGE #3547)  
Strategic Response Group 3 – Brooklyn  
397 Coney Island Ave  
Brooklyn, NY 11218

NYPD OFFICER EDWARD E. GASTON (BADGE #4616)  
Strategic Response Group 2 – Bronx  
1278 Sedgwick Ave  
Bronx, NY 10452

NYPD INSPECTOR ELIAS A. NIKAS (TAX#902105)  
Patrol Borough Manhattan South (PBMS)  
c/o 1 Police Plaza, Room 110a  
New York, NY 10038

**SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK**

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LISA KELLY,

Plaintiff,

- against -

THE CITY OF NEW YORK; NYPD CAPTAIN ABRAHAM  
BADILLO; NYPD SERGEANT ELVIN GASHI; NYPD  
SERGEANT SASHA H. ROSEN; NYPD OFFICER EDWARD  
E. GASTON; NYPD INSPECTOR ELIAS A. NIKAS; NYPD  
SERGEANT DAVID A. LAMARRE; NYPD OFFICER  
STEVEN OQUENDO; and NYPD MEMBER DOES 1-13,

Defendant(s)

----- X

Index No.

**VERIFIED  
COMPLAINT**

**PLAINTIFF  
DEMANDS A  
TRIAL BY JURY**

Plaintiff LISA KELLY (“Plaintiff” or “Ms. Kelly”), by and through her attorneys, Gideon Orion Oliver, Cohen&Green P.L.L.C., and Beldock Levine & Hoffman LLP, hereby complains of Defendants as follows:

**PARTIES**

1. At all times mentioned herein, Plaintiff LISA KELLY is and has been a resident of the County, City, and State of New York.

2. At all relevant times mentioned herein, Defendant, City of New York (“New York City”), was and is a municipal corporation duly organized and existing under and by the virtue of the laws of the State of New York and acts by and through its agencies, employees, and agents, including (but not limited to) the New York City Police Department (“NYPD”) and their employees.

3. Defendant NYPD Captain Abraham Badillo was at all times relevant to this Complaint a member of the NYPD assigned to the police response on the street during the protest described herein. He is sued individually and in his official capacity.

4. Defendant NYPD Sergeant Elvin Gashi was at all times relevant to this Complaint a member of the NYPD assigned to the police response on the street during the protest described herein. He is sued individually and in his official capacity.

5. Defendant NYPD Inspector Elias A. Nikas was at all times relevant to this Complaint a member of the NYPD assigned to the police response on the street during the protest described herein. He is sued individually and in his official capacity.

6. Defendant NYPD Sergeant Sasha H. Rosen was at all times relevant to this Complaint a member of the NYPD assigned to the police response on the street during the protest described herein. He is sued individually and in his official capacity.

7. Defendant NYPD Officer Edward E. Gaston was at all times relevant to this Complaint a member of the NYPD assigned to the police response on the street during the protest described herein. He is sued individually and in his official capacity.

8. Defendant NYPD Sergeant David A. Lamarre was at all times relevant to this Complaint a member of the NYPD assigned to the police response on the street during the protest described herein. He is sued individually and in his official capacity.

9. Defendant NYPD Officer Steven Oquendo was at all times relevant to this Complaint a member of the NYPD assigned as the “arresting officer” described herein. He is sued individually and in his official capacity.

10. The true names of Defendant Does #1-13, as noted throughout this complaint, are currently unknown to the Plaintiff.

11. Defendant NYPD Member John Doe #1 appeared to be a male of average build wearing black gloves and a blue NYPD uniform.

12. Defendant NYPD Member John Doe #2 appeared to be a white male without gloves wearing a blue NYPD uniform.

13. Defendant NYPD Member John Doe #3 appeared to be a white male in a blue NYPD uniform.

14. Defendant NYPD Member John Doe #4 appeared to be an Asian male of slender build in a white shirt and glasses.

15. Defendant NYPD Member John Doe #5 appeared to be a white man of average build in a blue Community Affairs uniform.

16. Defendant NYPD Member Jane Doe #6 appeared to be a member of the Strategic Response Group of the NYPD who was a White or Hispanic woman of average build.

17. Defendant NYPD Member Jane Doe #7 appeared to be a white female member of the NYPD.

18. Defendant NYPD Members John Does #8-13 appeared to be members of the 7<sup>th</sup> Precinct.

19. At all times hereinafter mentioned, the Defendants were employed by the City of New York as members of the NYPD.

20. At all times hereinafter mentioned, Defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

21. Each and all of the acts and omissions of the Defendants alleged herein occurred while said Defendants were acting within the scope of their employment by the Defendant City.

22. Defendants were duly appointed and acting officers, servants, employees, and agents of Defendant City who were acting for, and on behalf of, and with the power and authority vested in them by Defendant City, and were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties.

23. Defendants were each and all responsible, in whole and/or in part, for the planning for and/or creation, promulgation, implementation, and/or enforcement of the unconstitutional policies, practices and/or customs complained of herein, and/or condoned, acquiesced in, adopted, and/or approved of the same, through their acts and/or failures to act, as set forth more fully below.

24. At all times relevant herein, as set forth more fully below, Defendants' actions and/or failures to act were malicious, intentional, knowing, and/or with a deliberate indifference to or a reckless regard for the natural and probable consequences of their acts and/or omissions.

25. Although they were aware of the conduct, present for it, and knew or should have known it was unconstitutional, at no point did any of the Defendants, or any other member of the NYPD, take any steps to intervene in, prevent, or otherwise limit the unconstitutional conduct engaged in by their fellow officers.

26. Each individual Defendant is sued in her or his individual and official capacities.

### **JURISDICTION**

27. Plaintiff brings claims under the law of the state of New York, the New York Constitution, the United States Constitution and the New York City Administrative Code.

28. Plaintiff served timely Notices of Claim on the municipal Defendant and has complied with all conditions precedent to commencing such an action under New York state law.

29. At least thirty days have elapsed since the service of Plaintiff's Notice of Claim, and adjustment and payment thereof has been neglected or refused.

**VENUE**

30. Venue is proper in the County of New York, as it is where Plaintiff resides, where the Defendant City of New York resides, and where the actions described herein occurred.

**STATEMENT OF FACTS**

31. Plaintiff Lisa Kelly is a 48-year-old sales strategist and marketing professional. She holds a Bachelor's degree from Drake University and a Master of Liberal Arts in International Business from Harvard University. At the time of the incident, Ms. Kelly served as a Vice President for the international web-camera service provider EarthCam, Inc.

32. On May 6, 2023, Ms. Kelly participated in a protest in Manhattan to raise awareness for and denounce the May 1, 2023 murder of Jordan Neely.

33. The protest involved a march, beginning from the subway station where Neely was murdered and ending around Bryant Park.

34. At approximately 6:30 p.m., Ms. Kelly entered the Lexington-63<sup>rd</sup> Street subway station with a large group of fellow protesters; by this time, the protest had concluded, and the participants slowly began to disperse. Shortly after, members of the NYPD entered the station and surrounded the train platform.

35. Ms. Kelly was standing peacefully on the train platform when she observed NYPD Inspector Elias A. Nikas command a group of NYPD officers to arrest the protesters.

36. NYPD members began to rush the crowd, manhandling and shoving protesters on the platform.

37. At no point was Ms. Kelly engaging in any violent, threatening, or illegal behavior, nor did any Defendant observe her engaging in any illegal activity.



38. There was no justification for the Defendants to use any force on Ms. Kelly, much less the force actually used.

39. Several NYPD members, on information and belief including Captain Abraham Badillo, Sergeant David Lamarre, and/or Defendant Doe 1, 2, and/or 3, grabbed Ms. Kelly by the arms and threw her to the platform floor.

40. NYPD officers began to assault Ms. Kelly.

41. One NYPD member picked Ms. Kelly up from the ground before dropping her.

42. An NYPD member believed to be Captain Badillo wrapped his arm around her neck and choked her from behind.

43. An NYPD member then applied metal handcuffs to Ms. Kelly, who was injured, disoriented, and still laying face-down on the floor of the platform.

44. Captain Badillo and NYPD Member John Doe #1 pulled Ms. Kelly up from the ground and began shoving her through the train station through a large crowd of NYPD officers. Ms. Kelly was pushed into crowded elevators while NYPD Officer Edward E. Gaston held her handcuffed wrists behind her.

45. Large crowds of people began to gather and take photographs of the arrestees.

46. During the course of the incident, Ms. Kelly's face mask was removed by NYPD members. Because of this, her face became clearly visible in the photos taken of her by people on the street; many of these photos were published by news media outlets including Daily News, Reuters, Fox News and CBS.

47. Before she was placed in the police van, Ms. Kelly was searched in public by NYPD Member Jane Doe #6. During the search, NYPD Member Jane Doe #6 placed her hands under Ms. Kelly's bra and between Ms. Kelly's legs.

48. Following this public search, Ms. Kelly was placed inside of a police van and transported to the NYPD's 7<sup>th</sup> Precinct.

49. After the van arrived at the 7<sup>th</sup> Precinct building, Ms. Kelly was made to wait for approximately one hour inside the vehicle while the NYPD members located her arresting officer.

50. At this time, Ms. Kelly notified the NYPD members that she was beginning to lose feeling in her right shoulder and left wrist. The Defendants refused to loosen Ms. Kelly's handcuffs or offer her any form of medical assistance.

51. Several NYPD members, including John Does #1, #2, and #4 unlawfully seized and tampered with Ms. Kelly's cell phone, reading her text message notifications out loud.

52. Ms. Kelly was brought to the Precinct, where she was held in the lobby and harassed by NYPD Member John Does #8-13.

53. NYPD Member Jane Doe #7 arrived and performed another invasive search on Ms. Kelly. She placed her hands underneath Ms. Kelly's bra, snapped Ms. Kelly's bra strap, and additionally placed her hands on Ms. Kelly's backside and between Ms. Kelly's legs.

54. During the search, the male NYPD members watched and laughed.

55. Following the search, Ms. Kelly was placed inside an individual holding cell, where her handcuffs were removed.

56. During her time in custody, Ms. Kelly notified the NYPD members that she was nauseous and in a significant amount of pain.

57. Although she requested medical attention, the NYPD members declined to provide such attention to Ms. Kelly and additionally actively advised her against seeking medical attention. NYPD members informed Ms. Kelly that if she wanted to go to the hospital, they would direct the hospital staff to give her Tylenol and send her back to the precinct.

58. At no point did any of the NYPD members present, during Ms. Kelly's arrest or at the 7<sup>th</sup> Precinct, provide an explanation or justification for why Ms. Kelly was arrested and detained.

59. During her time in custody, Ms. Kelly was deprived of meaningful access to water, soap, hygiene supplies, as well as other basic necessities.

60. Ms. Kelly was additionally subjected to cold and unsanitary conditions of confinement while in NYPD custody.

61. On May 7, 2023, at approximately 4:00 a.m., Ms. Kelly was released from NYPD custody and issued a Desk Appearance Ticket by NYPD Sergeant Sasha H. Rosen.

62. The Desk Appearance Ticket charging Ms. Kelly listed NYPD Officer Steven Oquendo as her arresting officer, though he was not present during Ms. Kelly's arrest.

63. Following her release, Ms. Kelly sought medical attention at the Emergency Department of Lenox Hill Hospital.

64. Ms. Kelly was diagnosed with a fracture in her left wrist and a concussion.

65. On May 25, 2023, the New York County Office of the District Attorney declined to prosecute the resulting criminal proceeding against Ms. Kelly.

66. The Defendants' conduct directly and proximately caused physical injury to Ms. Kelly, including, *inter alia*, bruising of her right leg and left wrist and cheek, pain in her neck and shoulder, and a concussion.

67. Ms. Kelly missed work due to the injuries sustained during the incident.

68. Ms. Kelly endured her own assault and witnessed the assaults of those around her. She additionally endured mental and emotional damages, the extent of which are not yet known.

**FIRST CLAIM FOR RELIEF**

**Unlawful Seizure / False Arrest*****Pursuant to 42 U.S.C. § 1983 for Defendants' Violations of Plaintiff's Rights Under the Fourth and Fourteenth Amendments to the United States Constitution***

69. Plaintiff incorporates by reference all the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

70. Defendants' seizure of the Plaintiff herein was done without any judicial warrant authorizing them to seize Plaintiff, was unreasonable, and was done without privilege or lawful justification.

71. Plaintiff did not consent and was conscious of her confinement by Defendants.

72. Defendants did not have individualized probable cause to seize, detain, or arrest Plaintiff.

73. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of her federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

74. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

**SECOND CLAIM FOR RELIEF****Excessive Force*****Pursuant to 42 U.S.C. § 1983 for Defendants' Violations of Plaintiff's Rights Under the Fourth and Fourteenth Amendments to the United States Constitution***

75. Plaintiff incorporates by reference all the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

76. Defendants' use of force against Plaintiff was unjustified and objectively unreasonable, taking into consideration the facts and circumstances that confronted Defendants.

77. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of her federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

78. The illegal conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

### **THIRD CLAIM FOR RELIEF**

#### **First Amendment**

#### ***Pursuant to 42 U.S.C §1983 for Defendants' Violations of Plaintiff's Rights Under the First and Fourteenth Amendments to the United States Constitution***

79. Plaintiff incorporates by reference all the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

80. Defendants imposed restrictions on protected speech and/or conduct that violated Plaintiff's First Amendment rights, including, but not limited to, in unlawfully seizing Plaintiff, in subjecting Plaintiff to excessive force, in selectively enforcing laws and regulations against Plaintiff, in subjecting Plaintiff to Defendants' protest policing policies, and in otherwise violating Plaintiff's rights and engaging in the acts and omissions complained of herein.

81. The Defendants' retaliatory restrictions Plaintiff complains of herein imposed upon Plaintiff's First Amendment rights to participate in, observe, and/or stand nearby speech, conduct, association, and/or other expressive activities protected by the First Amendment in public were themselves regulations on Plaintiff's protected conduct that:

a. Were viewpoint discriminatory and/or otherwise not content-neutral, and were not necessary, and precisely tailored, to serve compelling governmental interests, and/or were not the least restrictive means readily available to serve those interests; or,

b. Were content-neutral but nonetheless lacked sufficiently narrow tailoring to serve a significant governmental interest in that the restrictions substantially burdened more protected speech and/or conduct than was necessary to serve those interests, and/or failed to adequately provide alternatives for Plaintiff's protected expression, including in that Plaintiff's abilities to communicate effectively were threatened or limited; and/or

c. Afforded Defendants unbridled or otherwise inappropriately limited discretion to limit or deny Plaintiff's abilities to engage in protected conduct (also raising constitutionally significant Due Process-based vagueness and/or overbreadth concerns); and/or

d. Amounted to the imposition of strict liability on Plaintiff for engaging in protected speech and/or expression.

82. As a result of the Defendants' acts and omissions, Plaintiff was deprived of her federal, state, and/or other legal rights; caused bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused to expend costs and expenses; and/or otherwise was damaged and injured.

83. The illegal conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

#### **FOURTH CLAIM FOR RELIEF**

##### **First Amendment Retaliation**

##### ***Pursuant to 42 U.S.C §1983 for Defendants' Violations of Plaintiff's Rights Under the First and Fourteenth Amendments to the United States Constitution***

84. Plaintiff incorporates by reference all the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

85. Defendants retaliated against Plaintiff for engaging in speech and/or conduct protected by the First Amendment.

86. Defendants engaged in the acts and omissions complained of herein in retaliation for Plaintiff's protected speech and/or conduct.

87. Defendants engaged in the acts and omissions complained of herein in an effort to prevent Plaintiff from continuing to engage in such protected speech and/or conduct.

88. Defendants engaged in the acts and omissions complained of herein in order to prevent and/or discourage Plaintiff from engaging in similar protected conduct in the future.

89. Additionally, as discussed herein, Defendant City designed and/or implemented policies and practices pursuant to which those Defendants who implemented them subjected Plaintiff to violations of her First Amendment rights.

90. Upon information and belief, Defendants engaged in the acts and omissions described herein with respect to Plaintiff's First Amendment-based claims—including the related municipal liability claims involving the adoption of policies, practices, and/or customs and/or related failures to train, supervise, and/or discipline—with malice.

91. Upon information and belief, Defendants engaged in the acts and omissions described herein with respect to Plaintiff's First Amendment retaliation claims—including the related municipal liability claims involving the adoption of policies, practices, and/or customs and/or related failures to train, supervise, and/or discipline—in response to the perceived viewpoint and/or message expressed by Plaintiff.

92. Additionally, as discussed herein, Defendant City designed and/or implemented policies and practices pursuant to which those Defendants who ordered, effected, and otherwise participated in detaining and assaulting Plaintiff subjected Plaintiff to the violations of their First Amendment rights described elsewhere herein.

93. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of her federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

94. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

#### **FIFTH CLAIM FOR RELIEF**

##### **Due Process**

##### ***Pursuant to 42 U.S.C §1983 for Defendants' Violations of Plaintiff's Rights Under the Fifth and Fourteenth Amendments to the United States Constitution***

95. Plaintiff incorporates by reference all the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

96. As described above, Defendants enforced offenses in a manner that rendered them constitutionally void for vagueness and/or overbroad, such that their enforcement against Plaintiff violated her Due Process rights, in that Defendants' enforcement in connection with those offenses failed to provide and/or reflected the absence of adequately clear standards to guide police officials' extremely broad discretion to arrest anyone at their whim, based on *ad hoc* determinations, often without fair warning.

97. Additionally, as discussed elsewhere herein, Defendant City designed and/or implemented policies and practices pursuant to which those individual Defendants who ordered, effected, and otherwise participated in seizing Plaintiff and subjected Plaintiff to the violations of her Due Process rights described elsewhere herein.

98. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of her federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering,



psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

99. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

### **SIXTH CLAIM FOR RELIEF**

#### **Equal Protection and Selective Enforcement**

#### ***Pursuant to 42 U.S.C §1983 for Defendants' Violations of Plaintiff's Rights Under the Fourteenth Amendments to the United States Constitution***

100. Plaintiff incorporates by reference all the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

101. As discussed herein, Defendant City designed and/or implemented policies and practices pursuant to which those individual Defendants who ordered, effected, and otherwise participated in detaining Plaintiff thus subjected Plaintiff to the above-described violations of Plaintiff's Equal Protection rights.

102. As a result of Defendants' acts and omissions, Defendants deprived Plaintiffs of their federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

103. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

### **SEVENTH CLAIM FOR RELIEF**

#### **Municipal Liability**

#### ***Pursuant to 42 U.S.C §1983 and Monell v. Department of Social Services, 436 U.S. 658 (1978) for Defendants' Violations of Plaintiff's Rights Under the First, Fourth, and Fourteenth Amendments to the United States Constitution***

104. Plaintiff incorporates by reference all the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

105. The facts as pleaded above describe the policies, practices, and customs Defendants subjected the Plaintiff to, including, but not limited to: uses of excessive force, and sexual battery, and unlawful detention, and unreasonable restrictions on protesters' First Amendment-protected conduct, often without fair warning; employing crowd control tactics such as pushing, corralling, encircling, or otherwise trapping protesters, without fair warning; engaging in retaliatory and selective enforcement of the criminal laws against perceived participants in First Amendment assemblies lacking adequately clear standards to guide police officials' extremely broad discretion to arrest anyone at their whim, based on *ad hoc* determinations as to their perceived violations, without fair warning.

106. All of the wrongful acts or omissions complained of herein were carried out by the individual named and unnamed police officer defendants pursuant to: (a) formal policies, rules, and procedures of Defendant City; (b) actions and decisions by Defendant City's policymaking agents; (c) customs, practices, and usage of the NYPD that are so widespread and pervasive as to constitute de facto policies accepted, encouraged, condoned, ratified, sanctioned, and/or enforced by Defendant City and other policymaking officials; (d) Defendant City's deliberate indifference to Plaintiffs' rights secured by the First, Fourth, and Fourteenth Amendments of the United States Constitution, as evidenced by the City's failures, and the failures of the City's policymaking agents, to train, supervise, and discipline NYPD officers, despite full knowledge of the officers' wrongful acts, as described herein.

#### **EIGHTH CLAIM FOR RELIEF**

#### ***42 U.S.C. § 1983 False Arrest and Deprivation of Freedom Claim Against the Individual Defendants***

107. Plaintiff incorporates by reference all the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

108. The individual Defendants willfully and intentionally seized, searched, detained, and arrested Plaintiff, and caused her to be imprisoned, without probable cause, and without a reasonable basis to believe such cause existed.

109. Plaintiff had not been engaged in any unlawful, violent, or criminal conduct, nor was she engaged in any behavior or conduct which could reasonably be viewed as such nor a basis to justify her arrest.

110. Regardless of the lack of sufficient legal cause, Plaintiff was arrested and detained in the Defendants' custody overnight.

111. In so doing, the individual Defendants falsely arrest and imprisoned Plaintiff, and thereby violated and aided and abetted in the violation of Plaintiff's rights under the Fourth Amendment of the United States Constitution.

112. By reason thereof, the individual Defendants have violated 42 U.S.C §1983 and caused Plaintiff to suffer the deprivation of her individual liberty, the loss of the rights conferred to her under the United States Constitution, physical injuries, and mental and emotional anguish.

#### **NINTH CLAIM FOR RELIEF**

##### **N.Y.C. Admin. C. §§8-801 *et seq.*, "Qualified Immunity Repeal" Claims Against All Defendants**

113. Plaintiff incorporates by reference all the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

114. The New York City Administrative Code §8-803 provides as follows in relevant part:

a. “A covered individual who, under color of any law, ordinance, rule, regulation, custom or usage, subjects or causes to be subjected, including through failure to intervene, any other natural person to the deprivation of any right that is created, granted or protected by section 8-802 is liable to the person aggrieved for legal or equitable relief or any other appropriate relief.”

b. “The employer of a covered individual who, under color of any law, ordinance, rule, regulation, custom or usage, subjects or causes to be subjected, including through failure to intervene, any other natural person to the deprivation of any right that is created, granted or protected by section 8-802 is liable, based upon the conduct of such covered individual, to the person aggrieved for legal or equitable relief or any other appropriate relief.”

c. “A person aggrieved may make a claim pursuant to subdivision a of this section in a civil action in any court of competent jurisdiction by filing a complaint setting forth facts pertaining to the deprivation of any right created, granted or protected by section 8-802 and requesting such relief as such person aggrieved considers necessary to insure the full enjoyment of such right.”

115. Given the fact that a “covered individual” under §8-801 means “[any] employee of the police department,” the Individual NYPD Member Defendants are all considered covered individuals. §8-801.

116. Plaintiff is a “person aggrieved” because she was (at minimum) “allegedly subjected to, or allegedly caused to be subjected to, the deprivation of a right created, granted, or protected by §8-802 by a covered individual even if the only injury allegedly suffered by such natural person is the deprivation of such right.” *Id.*

117. Defendant City is liable as an employer, as set out above.

118. Defendants' uses of force against Plaintiff were unjustified, unlawful, and objectively unreasonable, considering the facts and circumstances before the Defendants.

119. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of Plaintiff's federal, state, and/or other legal rights; caused Plaintiff's bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

120. Further, it is not a defense to liability under §§8-801 *et seq.* that a covered individual has qualified immunity or any other substantially equivalent immunity.

121. Thus, the Court should award both compensatory and punitive damages against all parties (including the City), and all reasonable fees and court expenses pursuant to §8-805 of the Administrative Code.

### **TENTH CLAIM FOR RELIEF**

#### **Violations of New York State Law**

#### ***Pursuant to the New York State Constitution and New York State Common Law***

122. Plaintiff incorporates by reference all the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

123. The conduct of the police officials alleged herein occurred while they were on duty and/or in and during the course and scope of their duties and functions as police officials, and/or while they were acting as agents and employees of Defendant City, clothed with and/or invoking state power and/or authority, and, as a result, Defendant City is liable to the Plaintiffs pursuant to the state common law doctrine of *respondeat superior*.

#### **Violations of the New York State Constitution**

124. Defendants, acting under color of law, violated Plaintiff's rights pursuant to Article I, §§ 6, 8, 9, 11, and 12 of the New York State Constitution.

125. A damages remedy here is necessary to effectuate the purposes of Article I, §§ 6, 8, 9, 11, and 12 of the New York State Constitution, and appropriate to ensure full realizations of Plaintiff's rights under those sections.

#### **Assault and Battery**

126. Defendants committed assault within the meaning of New York common law against Plaintiff by intentionally placing Plaintiff in fear of imminent harmful or offensive contact.

127. Defendants committed battery within the meaning of New York common law against Plaintiff by intentionally physically contacting Plaintiff without Plaintiff's consent.

128. Defendants did thereby inflict assault and battery upon the Plaintiff.

#### **False Arrest, False Imprisonment, and Unreasonable Detention**

129. In performing the actions and behaviors described above, the Defendants did falsely detain Plaintiff within the meaning of New York common law without reasonable or probable cause, illegally and without a written warrant, and without any right or authority to do so. Plaintiff additionally was conscious of the confinement and was confined without her consent.

#### **Intentional and Negligent Infliction of Emotional Distress**

130. Plaintiff incorporates by reference all the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

131. In performing the actions and behaviors described above, Defendants engaged in extreme and outrageous conduct, which intentionally and/or negligently caused severe emotional distress to Plaintiff.

132. The acts and conduct of the Defendants were the direct and proximate cause of injury and damage to the Plaintiff and violated her statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

133. As a result of the foregoing, Plaintiff was deprived of her liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, humiliation, costs and expenses, and was otherwise damaged and injured.

134. The conduct of officials alleged herein occurred while they were on duty and/or in and during the course and scope of their duties and functions as police and law enforcement officials, and/or while they were acting as agents and employees of Defendant City, cloaked with and/or invoking state power and/or authority, and, as a result, Defendant City is liable to the Plaintiff pursuant to the state common law doctrine of *respondeat superior*.

### **JURY DEMAND**

135. Plaintiff requests a jury trial on all issues capable of being tried and determined by a jury pursuant to Fed. R. Civ. P. 38.

### **DEMAND FOR JUDGMENT**

WHEREFORE, Plaintiff demands judgment against the individual Defendants and the City of New York as follows:

- I. Actual and punitive damages against the individual Defendants in an amount to be determined at trial;
- II. Actual damages in an amount to be determined at trial against the City of New York, and punitive damages pursuant to 42 U.S.C. §1988, N.Y.C. Admin. C. §8-805(1)(ii);
- III. Statutory attorney's fees, disbursements, and costs of the action pursuant to, *inter alia*, N.Y.C. Admin. L. §8-805(2), and New York common law; and
- IV. Such other and further relief as the Court may deem equitable, just, and proper to remedy Defendant's unlawful conduct.

Dated: Queens, New York  
August 5, 2024

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## VERIFICATION

STATE OF NEW YORK )  
COUNTY OF QUEENS ) ss.: \_\_\_\_\_

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ELENA L. COHEN, an attorney duly admitted to practice law in the Courts of this State

hereby affirms under the penalties of perjury:

1. I am the attorney for the Plaintiff herein.
2. I have read the attached Complaint and the same is true and to my own knowledge except as to matters therein alleged to be on information and belief and as to those matters I believe them to be true.
3. The reason this Petition is verified by the undersigned and not Petitioner is that Petitioner is not in the county where I have my office.

Dated: Queens, NY  
August 5, 2024

**COHEN&GREEN P.L.L.C.**

By:



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